

25TRCV04366 25TRCV04366

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-15

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Case Number: 25TRCV04366 Hearing Date: July 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

GREGORIO SALAZAR DEL RIO

, et al.;

Plaintiffs,

vs.

insurance auto auctions,

inc.

, et al.;

Defendants.

Case

No.:

25TRCV04366

Hearing

Date:

July
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) SPECIALLY
APPEARING DEFENDANT ANTONY'S MOTION TO QUASH SERVICE OF SUMMONS

MOVING PARTY: Specially Appearing Defendant,
"Antony"

RESPONDING PARTY: No opposition.

(1)
Specially
Appearing Defendant Antony's Motion to Quash Service of Summons is DENIED,
without prejudice, pursuant to Code of Civil Procedure section 418.10,
subdivision (a)(1).

The Court considers the moving
papers filed on May 4, 2026. To date, no
opposition brief has been filed.

BACKGROUND

Factual Background

On December 23, 2025, plaintiffs
Gregorio Salazar del Rio, Arlet Salazar, Scarlett Salazar, a minor by and
through her Guardian ad Litem, Arlet Salazar, and Scarlett Salazar, a minor by
and through his Guardian ad Litem, Arlet Salazar, (collectively, "Plaintiffs") filed
the Complaint against defendants Insurance Auto Auctions, Inc., Juan Varela,
Antony (Last Name Unknown), and DOES 1 through 50. The Complaint includes one cause of action

for: (1) Negligence/Negligence Per Se.

On the same day, Arlet Salazar filed two Applications for Appointment of Guardian Ad Litem – Civil and Family Law for Scarlett Salazar and Bennett Salazar. The Court granted these applications on March 19, 2026.

On April 3, 2026, Plaintiffs submitted a proof of service indicating that a registered process server served the following documents to Antony (last name unknown) via substituted service: (1) two Applications for Appointment of Guardian Ad Litem – Civil and Family Law Ex Parte; (2) two Orders Appointing Guardian Ad Litem – Civil and Family Law Ex Parte; and (3) Plaintiffs' Notice of Posting Jury Fees. (April 3, 2026 PoS, p. 1.) The documents were left with "Jane Doe," a receptionist, at 18300 S Vermont Ave., Gardena, CA 90248-4056, on April 3, 2026, at 8:04 a.m. (April 3, 2026 PoS, p. 1.)

On May 8, 2026, Insurance Auto Auctions, Inc. filed the Cross-Complaint against cross-defendants Mercury Express, LLC, and ROES 1 through 20. The Cross-Complaint includes the following causes of action: (1) Implied Contractual Indemnity; (2) Express Contractual Indemnity; (3) Equitable Indemnity; (4) Total Indemnity; (5) Contribution; and (6) Declaratory Relief.

LEGAL STANDARD

Under Code of Civil Procedure section 418.10, "[a] defendant, on or before the last day of [their] time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ... ¿[t]o quash service of summons on the ground of lack of jurisdiction of the court over [them]." (Code Civ. Proc., § 418.10, subd. (a)(1).) "When a defendant argues that service of summons did not bring [them] within the trial court's jurisdiction, the plaintiff has 'the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.'" (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 387.) A process server's proof of service creates a rebuttable presumption that service was valid, but only if the service declaration follows the statutory requirements regarding such proofs. (Id. at p.

390; Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163.)

"[A] party who moves to quash may—concurrently with or after filing a motion to quash—participate in the litigation and 'no act' by the party constitutes an appearance unless and until the proceedings on the motion to quash are finally decided adversely to that party." (ViaView, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 204.)

DISCUSSION

Antony moves to quash Plaintiffs' alleged service of the Summons and Complaint, contending that "Plaintiffs failed to effect valid personal or substituted service on this Defendant as required by the California Code of Civil Procedure and governing rules." (Motion, p. 2:2-3.) However, Antony's motion is premature and moot.

Antony filed this motion on May 4, 2026. (Motion, p. 1.) To date, Plaintiffs have not submitted proof of service indicating that Antony has been served. Indeed, Plaintiffs concede that Antony has not been served. On July 10, 2026, Plaintiffs filed a case management statement in which they asserted, "The following parties named in the complaint or cross-complaint ... have not been served (specify names and explain why not): ANTONY (Last name unknown) unable to located at this time." (CMS, ¶ 3b(1).) Consequently, there is no summons to quash.

Accordingly, Antony's motion is DENIED as moot.

ORDERS

1)
Specially
Appearing Defendant Antony's Motion to Quash Service of Summons is DENIED, without prejudice.

2)
The
Court shall provide notice of this ruling.

IT IS SO ORDERED.

DATED: July 15, 2026

Tamara
Hall

Judge
of the Superior Court